

Brecksville-Broadview Heights City School District

CONTRACT OF EMPLOYMENT OF TREASURER/CFO

This Employment Contract (“Contract”) is entered into this ____ day of December, 2019, by and between the Board of Education of the Brecksville-Broadview Heights City School District (“Board”), Cuyahoga County, Ohio, and Craig G. Yaniglos, a person qualified by training, experience and certification/license to occupy the position of Treasurer/CFO in an Ohio public school district (“Treasurer/CFO” or “Yaniglos”) pursuant to authority contained in a resolution of the Board adopted on December ____, 2019, in accordance with the provisions of Section 3313.22 of the Ohio Revised Code, as amended.

WHEREAS, the Board desires to employ the Treasurer/ CFO and the Treasurer/CFO desires to accept employment with the Board as Treasurer/CFO pursuant to Section 3313.22 of the Ohio Revised Code, as amended.

NOW THEREFORE, in consideration of the mutual promises contained herein, the Board and Treasurer/CFO agree as follows:

WITNESSETH:

1. Term of Contract

The Board hereby employs Craig G. Yaniglos as Treasurer/CFO of the Brecksville-Broadview Heights City School District (the “District”) for a term beginning the 3rd day of February, 2020, and ending the 31st day of July, 2023, unless sooner terminated as provided herein. The Treasurer/CFO’s contract year is a 12 month, 260 day contract, which shall be prorated from February 3, 2020 to July 31, 2020.

2. Professional Certification

The Treasurer/CFO shall maintain and furnish to the Board evidence of his maintaining, throughout the life of this Contract, valid credentials to act as Treasurer in this District issued under Section 3301.074 of the Ohio Revised Code, and as otherwise provided by Ohio law. The Treasurer/CFO shall execute a bond, in an amount with a surety to be approved by the Board, payable to the State of Ohio, conditioned for the faithful performance of all the official duties required of him and shall deposit such bond with the President of the Board.

3. Duties

The Treasurer/CFO shall perform the duties specified in the laws of the State of Ohio including but not limited to the duties set forth in Section 3313.25 through 3313.32 of the Ohio Revised Code, Board Policy, the Job Description for the Treasurer/CFO as adopted by the Board, as it may be amended from time to time at the Board's sole discretion during the term of this Contract. All duties are hereby incorporated in this Contract by reference as if fully restated herein. In addition, the Treasurer/CFO shall perform such other duties as may be assigned by the

Board during the term of this Contract, including the duty to direct and assign employees engaged in the day-to-day fiscal operations of the District.

The Treasurer/CFO shall devote his full time and energies as are necessary to perform the duties specified in this Agreement throughout its duration. These duties will be performed during the normal business hours of the Treasurer/CFO's Office, but it is expressly agreed that the duties of this position will require the Treasurer/CFO to work during times other than normal business hours and may require work exceeding forty hours per week, for which no additional compensation shall be paid.

Prior to February 3, 2020, Yaniglos may work as a consultant with the district for up to ten (10) days at the per diem rate as determined below. Yaniglos will coordinate with Board President to determine such days.

4. Compensation

The Board, in consideration of the services to be rendered by the Treasurer/CFO, hereby agrees to pay him a base salary and fringe benefits as provided herein. Any adjustment of compensation made during the life of this Contract shall be in the form of an amendment and shall become part of this Contract. Said compensation will be payable in equal installments at the same time and in the same manner as all other full-time twelve (12) month administrative employees of the Board (unless provided herein otherwise) and shall not be less than the compensation paid during the preceding year of the Contract.

a. Salary

Effective February 3, 2020, through the end of the term of this Agreement, the Treasurer/CFO's base salary shall be One Hundred Twenty-Seven Thousand Dollars (\$127,000), which shall not be reduced during the term of this Agreement except as part of a uniform district-wide reduction plan as provided by law. The salary of the Treasurer/CFO will be paid in equal installments in accordance with Board Policy. If any adjustment in salary is made during the term of the Contract, all other provisions of this Contract, including its term ending date, shall remain as stated herein.

The Treasurer's base salary shall be increased 1.75% each year of this Agreement. The base salary shall be renewed annually for possible increase based upon mutual agreement.

b. Fringe Benefits and Leaves

Except where this Contract expressly provides for a different fringe benefit or leave allocation, the Treasurer/CFO shall receive in addition to the above-stated base salary, such fringe benefits and leaves which are provided to other certificated employees in accordance with Board Policy and Administrative Personnel Guidelines as such may be amended from time to time (the "Policy and

Guidelines”). The Policy and Guidelines, including any subsequent amendments thereto, are incorporated herein and made a part hereof.

c. FICA Contribution

The Board agrees to pay on behalf of the Treasurer/CFO, the full amount of the employee tax that, pursuant to Section 3101 of the Internal Revenue Code, is imposed upon all of the Medicare tax “wages” that are paid to the Treasurer/CFO pursuant to this Contract (currently 1.45% of salary). The Treasurer/CFO acknowledges and agrees that such payments may be reportable as additional taxable income of the Treasurer/CFO; and Board shall not be required to pay on behalf of, or to otherwise reimburse the Treasurer/CFO on account of, any such income tax consequences.

5. Annuity

At the end of each calendar month of employment under this Contract, the Board shall contribute on behalf of the Treasurer/CFO to an annuity contract or custodial account which is tax qualified under IRC §403(b) (an “Annuity”) as selected by the Treasurer/CFO from a list of Providers that are available under the Section 403(b) Plan of the District, and/or from IRC Section 401(a) or IRC Section 457, or any combination of such plans, as determined by the Treasurer/CFO. The amount to be contributed to the Annuity for each month shall be equal to one twelfth (1/12) of six and one-half percent (6.5%) of the base salary that is payable pursuant to Paragraph 3(a) above. The annuity shall be the property of Treasurer/CFO both before and after separation from employment. The Treasurer/CFO acknowledges that for federal income tax purposes, the payments to the Annuity or other IRS tax-sheltered payments shall be treated as salary reduction contributions on behalf of the Treasurer/CFO. The Board agrees to fully cooperate with the Treasurer/CFO to implement tax-sheltering decisions by the Treasurer/CFO to the extent allowed under law consistent with the above. At the sole discretion of the Treasurer/CFO, any portion or all of this six and one-half percent (6.5%) annuity amount can be taken as cash payment to be distributed in two (2) equal payments each contract year, or can be taken as compensation to be included in bi-weekly salary payments, so long as the total payments made under this Section to the Treasurer/CFO or to the annuity company do not exceed the six and one-half (6.5%) total amount allowed in this Section 5 – Annuity. The amounts paid to the Annuity and/or paid to the Treasurer/CFO shall be considered part of the base salary of the Treasurer/CFO for SERS and other purposes.

6. Professional Development

The Board shall pay the cost of the Treasurer/CFO’s membership in OASBO. Upon request of the Treasurer/CFO, the Board may also approve the cost of the Treasurer/CFO’s membership in other professional organizations, provided they are educational in nature and/or relate to the performance by the Treasurer/CFO of his duties for the District and shall include, but not be limited to, community organizations. Additionally, the Treasurer/CFO shall be encouraged to attend professional meetings at the local, state, and national level as are approved by the Board, including the cost of attendance. “Cost of membership” and “cost of attendance”

shall include, but not be limited to, dues, assessments, and reasonable expenses (including travel expenses) relating to membership in and attendance at meetings of the organization.

7. Days to Be Worked

The Treasurer/CFO's rate of pay shall be calculated on the basis of two hundred sixty (260) working days, inclusive of all holidays and vacation days. The Treasurer/CFO shall devote such time and energies as are necessary to perform the duties specified in the Job Description. These duties will generally be performed during normal business hours, but it is expressly agreed that the duties of this position will require the Treasurer/CFO to work during times other than normal business hours.

8. Per Diem Rate

The *per diem* rate of pay calculations shall be consistent with the method used for all eligible District administrators in Section 1(B) of the Administrative Personnel Guidelines effective August 1, 2016, and as may be amended from time to time during the term of this Agreement.

9. Expenses

The Board shall reimburse the Treasurer/CFO for all actual and necessary travel and other expenses required in the performance of his or her official duties during his employment under this Contract, subject to such procedures and limitations as provided by law and by Board policy. This includes a cell phone allowance in accordance with Board Policy.

10. Relocation Expenses

The Board agrees to reimburse the Treasurer/CFO up to Five Thousand Dollars (\$5,000) for documented out-of-pocket costs associated with his family's relocation to the Brecksville-Broadview Heights area provided such relocation occurs by August 1, 2021.

11. Evaluation

The Board shall evaluate the Treasurer/CFO at least once each year in accordance with the Board-adopted Evaluation Procedure. The Board shall consider the Treasurer/CFO's evaluations in deciding whether to renew the Treasurer/CFO's Contract. Consistent with ORC 3313.22(D), the establishment of an Evaluation Procedure does not create an expectancy of continued employment nor prevent the Board from making a final determination regarding the renewal or nonrenewal of the Treasurer/CFO's contract.

12. Indemnification

The Board agrees that it will defend and indemnify the Treasurer/CFO against all civil demands, claims, suits, actions and legal proceedings, whether threatened or instituted, brought against the Treasurer/CFO in his individual capacity, or in his official capacity as agent and

employee of the Board, that arise from the acts or omission of the Treasurer/CFO while acting within the scope of his employment and in good faith belief that such conduct was lawful and in the best interests of the District. The Board's expenditures and obligations under this provision shall not exceed the amount provided by insurance purchased by the Board for this purpose or the amount appropriated by the Board for this purpose, whichever is greater.

The Treasurer/CFO expressly acknowledges that the Board has no duty to defend or indemnify the Treasurer/CFO with respect to any criminal proceeding or with respect to findings for recovery in an audit pursuant to Section 117.28 of the Revised Code.

13. Extension

The Board may, by specific action, extend the termination date of the existing contract; the extended contract may not exceed a total of five (5) years. Failure to notify the Treasurer/CFO, in writing, no later than the first day of December of the year in which his Contract of employment expires, of the Board's intent not to renew the Contract will result in a one-year extension of the existing contract.

14. Incapacity Clause

Upon the request of the Board, the Treasurer/CFO shall be required to obtain an annual physical examination by a doctor or doctors of his choice within the District's PPO network, the cost of which shall be fully paid by the Board to the extent not covered by insurance.

The Treasurer/CFO may be placed on sick leave or on leave of absence upon his incapacity, pursuant to Section 3313.32 of the Ohio Revised Code, according to the standard then in effect under Board Policy, or may be terminated upon his permanent incapacity, as provided below.

15. Contract Termination

This Employment Contract may be terminated by:

- a. Mutual agreement of the Parties;
- b. Retirement, disability, or death of the Treasurer/CFO;
- c. Termination by the Board in accordance with ORC 3313.22(E) and 3319.16;
- d. Termination in accordance with ORC 3313.22(B) for failure of the Treasurer/CFO to maintain a valid license under ORC 3301.074;
- e. Violation of any of the terms of this Contract.
- f. In addition, any of the following actions or inactions by Treasurer/CFO constitutes grounds for the Board to terminate the Treasurer/CFO:

- i. Material violation of Board Policies;
- ii. Conviction of a felony crime or other crime of moral turpitude or other crime involving dishonesty;
- iii. Incompetency;
- iv. Failure to follow the recommendations of an evaluation;
- v. As may be otherwise provided by law.

16. Savings Clause

If any portion of this Contract is deemed to be illegal due to a conflict with state or federal law, the remainder of the Contract shall remain in full force and effect.

Craig G. Yaniglos, Treasurer/CFO	Date
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Kathleen Mack, President Brecksville-Broadview Heights City School District Board of Education	Date
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John W. Scott, Interim Treasurer/CFO Brecksville-Broadview Heights City School District	Date
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